

## Public Administrator (40)

The Department of Public Administrator is the New York State Surrogate's Court agent for the implementation and management of New York State's program to administer estates of Westchester residents who die intestate without known heirs; probate wills of decedents when named executors have predeceased or fail to qualify; settle estates and make distribution to rightful heirs. The Department is required to operate under the following New York State Laws and State Codes, Rules and Regulations:

### Programs and Services

Public Administrator

### State Law or Regulations

NYS Surrogate's Court Procedure Act, Article 12

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### PROGRAM AREA AND SERVICES:

#### GENERAL GOVERNMENT SUPPORT

- ✓ Administer estates of Westchester residents who die intestate (without a Will), without known heirs, or where known heirs are foreign aliens.
- ✓ Probate Wills of decedents when named executor in the Will refuses or fails to qualify to act or is deceased.
- ✓ Verify and collect assets in name of decedent such as bank accounts, stocks, bonds, mutual funds, real estate, pensions, insurance, cars, jewelry, art, and other valuable tangible property.
- ✓ Filing of tax returns and settlement of claims.
- ✓ Conduct an investigation to determine the rightful heirs.
- ✓ Render an accounting to be presented to the Surrogate's Court for settlement of the estate. This accounting reflects all of the activities of the estate from the decedent's date of death until the date the estate is concluded. This report is forwarded to all beneficiaries who are entitled to share in the balance of the estate.
- ✓ Management and sale of real property.
- ✓ Reinvesting estate assets in the most favorable, prudent investments, and in accordance with the Investment Policy of Westchester County's Department of Finance.
- ✓ Distributing the net proceeds of the estate to the individuals entitled to such proceeds either by the terms of the Will or by law.
- ✓ Appointment as Trustee to perform all acts requisite to the proper administration and disposition of the trust in accordance with the trust agreement, the Will (if applicable), the laws of New York State, and the Uniform Trust Code.
  - ◆ Management and sale of property constituting corpus (principal) of the trust.
  - ◆ Invest trust assets in the most favorable, prudent investments, and in accordance with the Investment Policy of Westchester County's Department of Finance.
- ◆ Report fiduciary activities and render an accounting to trust beneficiaries, and where applicable, settlor, and third parties.
- ◆ Distribute income and principal to beneficiaries and distributees entitled to such proceeds under the terms of the trust agreement.
- ✓ Under SCPA Article 17, appointment as Guardian of the property of an infant or intellectually and developmentally disabled person. Serves as fiduciary to:
  - ◆ Manage and monitor personal and real property of the infant or intellectually and developmentally disabled person.
  - ◆ Invest assets of such person in the most favorable, prudent investments, and in accordance with the Investment Policy of Westchester County's Department of Finance.
  - ◆ File tax returns and settle person's debts and claims.
  - ◆ Report fiduciary activities and render an accounting to the Court, and third parties as required.
- ✓ There may be instances when it is appropriate to commence litigation on behalf of the estate if the decedent died due to negligence of another individual or if a person who had control over the decedent's assets, pursuant to a power of attorney, misappropriated or wrongfully transferred the assets of the decedent.
- ✓ Appointment as Limited Administrator on estate matters from Supreme Court for defense of a cause of action. These are matters currently on file wherein named defendant dies during the proceeding and the Public Administrator is appointed per SCPA Art. 7, and substituted per CPLR Art. 10 § 1015.

#### DEPARTMENT INITIATIVES:

- ✓ To administer estates as cost effectively as possible and to distribute to rightful heirs according to the laws of intestacy of the State of New York or in accordance with the probated will.
- ✓ To continue with the automation of the manual central records maintained for each estate, i.e., Central Inventory of estate assets, mail log and the Estate Investigator's inventory of decedents' personal property.

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- ✓ To continue paper reduction efforts with optimum use of physical file storage space for pending and closed estate matters. This objective is to be accomplished through use of scanner equipment and software enabling electronic storage of estate documents.
- ✓ To continue cross-training staff members on the use of the OnBase Document Management System.
- ✓ To provide training to all new staff on the utilization and available functions of Computrust.
- ✓ To continue cross-training staff members on the use of Ancestry.com as a resource to locate a decedent's next of kin and create family trees for court filings.
- ✓ To utilize "Lexis-Nexis Accurint for Government" program to locate next of kin and estate assets.
- ✓ To train staff members on the use of "Lexis-Nexis Accurint for Government" program.

### DEPARTMENT ACCOMPLISHMENTS:

- ✓ Continued closing of on-going estate matters, including contested estate matters.
- ✓ Updating of all software associated with estate administration, i.e. Forms 1099, Tax Tools, Forms Library, and bond programs.

### REVENUES:

- ✓ Departmental revenues are received via commissions and for operating costs. Fees are based on a percentage of the estate value in accordance with New York State Law.

### SERVICE INDICATORS:

|                                                                                              | 2023<br>Actual | 2024<br>Estimated | 2025<br>Planned |
|----------------------------------------------------------------------------------------------|----------------|-------------------|-----------------|
| Estates settled                                                                              | 264            | 150               | 150             |
| Estates Investigated and closed (report of death)                                            | 173            | 120               | 150             |
| Gross Amount of Estates Settled                                                              | \$8,723,135    | \$17,000,000      | \$15,000,000    |
| Funds recovered and paid to Department of Social Services                                    | \$565,396      | \$450,000         | \$450,000       |
| Receipts paid to Comptroller of the State of New York                                        | \$253,010      | \$2,000,000       | \$500,000       |
| Statutory costs and Commissions                                                              | \$404,136      | \$400,000         | \$400,000       |
| Distribution to heirs                                                                        | \$5,220,598    | \$8,000,000       | \$6,000,000     |
| Commissioner of Finance-Holding distributive share for persons whose whereabouts are unknown | \$13,001       | \$8,000           | \$8,000         |

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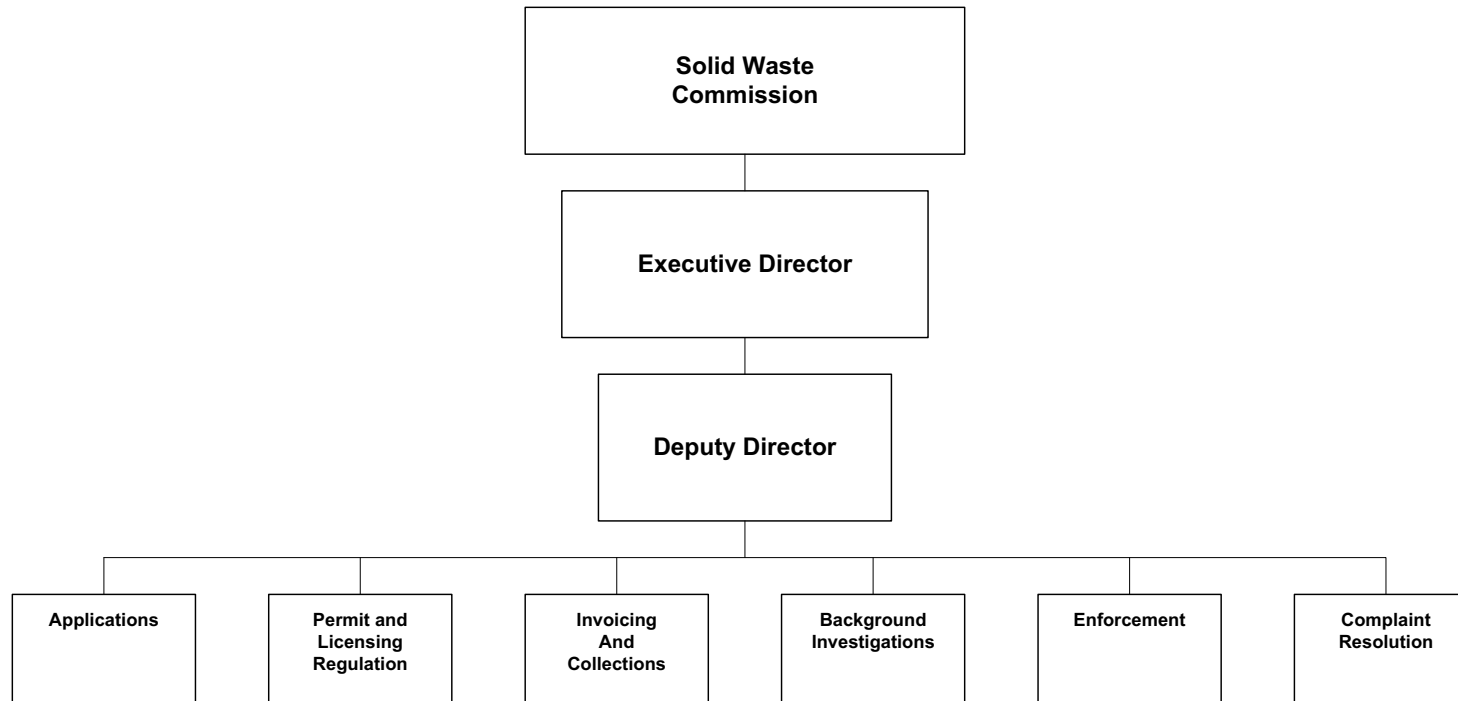
| Objects of Expenditure      |              | Expended<br>2023 | Adopted<br>2024 | Appropriated<br>2024 | Projected<br>2024 | Requested<br>2025 | Allowed<br>2025 |
|-----------------------------|--------------|------------------|-----------------|----------------------|-------------------|-------------------|-----------------|
| <b>Personal Service:</b>    |              |                  |                 |                      |                   |                   |                 |
| <b>Annual-Regular:</b>      | <b>GROUP</b> |                  |                 |                      |                   |                   |                 |
| Public Administrator        | XVI          | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| Deputy Public Administrator | XII          | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| Accountant III              | XII          | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| Estate Investigator         | X            | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| Paralegal                   | VIII         | 2                | 2               | 2                    | 2                 | 2                 | 2               |
| Secretary II                | VIII         | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| Secretary I                 | VII          | 1                | 1               | 1                    | 1                 | 1                 | 1               |
| <b>Total Positions</b>      |              | <b>8</b>         | <b>8</b>        | <b>8</b>             | <b>8</b>          | <b>8</b>          | <b>8</b>        |

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| Account Class                 | Account Rollup Name          | Expended<br>2023 | Adopted<br>2024 | Appropriated<br>2024 | Projected<br>2024 | Requested<br>2025 | Allowed<br>2025 |
|-------------------------------|------------------------------|------------------|-----------------|----------------------|-------------------|-------------------|-----------------|
| 100 Annual Regular Salaries   | 1010 Net-Annual Regular      | 749,068          | 776,528         | 776,528              | 776,528           | 802,361           | 794,337         |
|                               |                              | <b>749,068</b>   | <b>776,528</b>  | <b>776,528</b>       | <b>776,528</b>    | <b>802,361</b>    | <b>794,337</b>  |
| 200 Equipment                 | 2300 Replacement             | 0                | 1,000           | 1,000                | 1,000             | 1,000             | 1,000           |
|                               |                              | <b>0</b>         | <b>1,000</b>    | <b>1,000</b>         | <b>1,000</b>      | <b>1,000</b>      | <b>1,000</b>    |
| 300 Material & Supplies       | 3010 Automotive Supplies     | 22               | 300             | 300                  | 300               | 300               | 300             |
|                               | 3070 Book and Periodicals    | 0                | 300             | 300                  | 300               | 300               | 300             |
|                               | 3600 Printing & Office Suppl | 2,764            | 3,520           | 3,575                | 3,520             | 3,525             | 3,525           |
|                               | 3700 Postage Costs           | 853              | 1,800           | 1,800                | 1,800             | 1,800             | 1,800           |
|                               |                              | <b>3,639</b>     | <b>5,920</b>    | <b>5,975</b>         | <b>5,920</b>      | <b>5,925</b>      | <b>5,925</b>    |
| 400 Expenses                  | 4070 Equip Service & Rental  | 1,617            | 4,975           | 4,975                | 4,975             | 5,140             | 5,140           |
|                               | 4110 Travel and Meals        | 0                | 125             | 125                  | 125               | 125               | 125             |
|                               | 4160 Telephone Expenses      | 1,205            | 1,200           | 1,200                | 1,200             | 1,200             | 1,200           |
|                               | 4200 Repair & Maintenance    | 0                | 500             | 500                  | 500               | 500               | 500             |
|                               | 4360 Educational Training    | 319              | 400             | 400                  | 400               | 400               | 400             |
|                               | 4380 Contractual Services    | 32,878           | 34,248          | 34,248               | 34,248            | 35,629            | 35,629          |
|                               | 4420 Technical Services      | 3,453            | 3,345           | 3,345                | 3,345             | 3,395             | 3,395           |
|                               |                              | <b>39,472</b>    | <b>44,793</b>   | <b>44,793</b>        | <b>44,793</b>     | <b>46,389</b>     | <b>46,389</b>   |
| 599 Inter-Departmental Charge | 5205 Information Support Svc | 103,864          | 122,568         | 122,568              | 122,568           | 136,974           | 129,186         |
|                               | 5280 Svc by Public Works     | 5,918            | 5,877           | 5,877                | 5,877             | 7,295             | 5,197           |
|                               | 5325 Svc by Dept of Law      | 1,208            | 6,461           | 6,461                | 6,461             | 5,805             | 5,678           |
|                               | 5375 Svc by Dept of Finance  | 10,000           | 10,000          | 10,000               | 10,000            | 10,000            | 10,000          |
|                               |                              | <b>120,989</b>   | <b>144,906</b>  | <b>144,906</b>       | <b>144,906</b>    | <b>160,074</b>    | <b>150,061</b>  |
| <b>Total Expenditures</b>     |                              | <b>913,167</b>   | <b>973,147</b>  | <b>973,202</b>       | <b>973,147</b>    | <b>1,015,749</b>  | <b>997,712</b>  |
| <b>Net Expenditures</b>       |                              | <b>913,167</b>   | <b>973,147</b>  | <b>973,202</b>       | <b>973,147</b>    | <b>1,015,749</b>  | <b>997,712</b>  |
| 50 Departmental Income        |                              | 404,136          | 397,000         | 397,000              | 397,000           | 400,000           | 400,000         |
| <b>Total Revenues</b>         |                              | <b>404,136</b>   | <b>397,000</b>  | <b>397,000</b>       | <b>397,000</b>    | <b>400,000</b>    | <b>400,000</b>  |
| <b>Net Department Total</b>   |                              | <b>509,032</b>   | <b>576,147</b>  | <b>576,202</b>       | <b>576,147</b>    | <b>615,749</b>    | <b>597,712</b>  |

# Westchester County

## Solid Waste Commission (41)



The Executive Director is appointed by the County Executive, subject to confirmation by the Board of Legislators.

## Solid Waste Commission (41)

### Mission Statement

The mission of the Westchester County Solid Waste Commission is to promote the general health, welfare and safety of the citizens of Westchester County by regulating the solid waste industry and ensuring that only individuals and companies of good character, honesty and integrity receive and retain licenses to operate in the Solid Waste and Recyclables hauling and disposal industries; increasing competition among haulers and enhancing consumer choice; seeking to eliminate fraud and the influence of Organized Crime and other organized criminal activity and bad actors in the Solid Waste and Recyclables hauling and disposal industries; and ensuring that any and all haulers and transfer stations that are either collecting, storing, transporting and or dumping Solid Waste and Recyclables within Westchester County are in full compliance with the Laws of Westchester County.

|                                      | 2024      | 2025      |
|--------------------------------------|-----------|-----------|
| <b>POSITIONS</b>                     |           |           |
| Operating                            | 9         | 10        |
| Grants                               | 0         | 0         |
|                                      | 9         | 10        |
| <b>OPERATING BUDGET EXPENDITURES</b> |           |           |
| Personal Services                    | 1,523,954 | 1,874,859 |
| Equipment                            | 55,000    | 55,000    |
| Material & Supplies                  | 43,180    | 39,000    |
| Expenses                             | 175,667   | 152,836   |
| Interdepartmental Charges            | 517,425   | 231,055   |
| <b>TOTAL EXPENDITURES</b>            | 2,315,226 | 2,352,750 |
| <b>OPERATING BUDGET REVENUES</b>     |           |           |
| Interdepartmental                    |           |           |
| Departmental                         | 2,949,640 | 3,170,240 |
| State and Federal Aid                |           |           |
| <b>TOTAL REVENUES</b>                | 2,949,640 | 3,170,240 |
| <b>DEPARTMENT TAX LEVY</b>           | (634,414) | (817,490) |
| <b>DEPARTMENT TOTAL</b>              | (634,414) | (817,490) |

The Appropriated 2024 figures in the supporting detail include all budget amendments through August 31, 2024 and Appropriations Assigned for Purchases on Order ("roll forwards") of \$233.



## Solid Waste Commission (41)

### PROGRAM AREA AND SERVICES:

#### GENERAL GOVERNMENT SUPPORT

- ✓ The Solid Waste Commission performs background checks on all applicants and principals seeking a license so as to evaluate the good character, honesty and integrity of licensees and permittees in Westchester County.
- ✓ Issues licenses and permits for the performance of activities for which a license or permit is required by the Westchester County Solid Waste and Recyclables Collection Licensing Law (Chapter 826-a of the Laws of Westchester County).
- ✓ Ensures that only licensed and permitted haulers collect, store, transport and/or dump solid waste and recyclables within Westchester County, and that licensed or permitted haulers use only trucks registered with the Solid Waste Commission.
- ✓ Ensures that only entities licensed and permitted by the Solid Waste Commission dump and back-haul solid waste and recyclables at transfer stations located in Westchester County.
- ✓ Investigates complaints by and against haulers that occur within Westchester County.
- ✓ Encourages entry into the industry and competition within the industry in Westchester County and informs the public of its rights under the Westchester County Solid Waste and Recyclables Collection Licensing Law.

#### DEPARTMENT INITIATIVES:

##### ON-GOING

- ✓ Fields complaint calls from haulers, as well as businesses and residents of Westchester County.
- ✓ Conducts inspections at transfer stations and active construction sites in Westchester County to ensure that only licensed and permitted haulers are collecting, storing, transporting and/or dumping in the County, and that licensed and permitted haulers are using only vehicles registered with the Commission.

- ✓ Works with law enforcement and other government officials from Municipal, County, State and Federal agencies throughout the region concerning Commission investigations into fraud and other criminal and other problematic activity impacting the solid waste industry.
- ✓ Working with Legislator Tubiolo and his team and the Law Dept. on new dumping on County land legislation which has now been set down for a public hearing in September. SWC will be the lead agency on the civil enforcement side.
- ✓ Reviews service contracts executed by licensed haulers when appropriate to ensure that they are complying with the provisions of Chapter 826-a.
- ✓ Analyzes dump records from transfer stations located within Westchester County to ensure that only licensed and permitted haulers are working in the County.

#### DEPARTMENT ACCOMPLISHMENTS:

##### ON-GOING

- ✓ Small business Initiative - we initiated a new program designed to assist small businesses in getting licensed with the Commission by lowering fees for certain eligible companies, something that has not been done in the 25-year history of the Commission. The Small Business Incentive Pilot Program helps to remove a financial barrier, allowing eligible small businesses the ability to enter the hauling market while complying with regulatory mandates. Such small businesses operating in Westchester County will stimulate economic activity by developing more business opportunities within the County. Companies who meet the Solid Waste Commission's small business eligibility requirements will pay significantly reduced fees.
- ✓ Working with developers and general contractors at large construction sites to ensure that all companies, including out of state haulers, are licensed with the Solid Waste Commission thereby allowing more opportunities for small, local haulers.
- ✓ Collaborating with DEC to identify unlicensed transfer stations. Based on that collaboration, the Commission has successfully licensed 5 new transfer stations, bringing the total number to 26.

## Solid Waste Commission (41)

- ✓ Strengthening our relationship with the licensed hauler community and creating a partnership that allows for a free flow of information to ensure that all haulers are operating in an honest and reputable manner to promote fair competition in the industry.
- ✓ Focusing on aggressively establishing relationships with local municipalities to build a rapport and dialogue about the hauling industry to ensure compliance with our laws.
- ✓ Educating other County departments, such as the Parks Department and DPW, about the Commission's licensing rules so they can be incorporated into their contracts to ensure that only licensed haulers are hired for County jobs.
- ✓ Engaging in public outreach to organics and junk removal companies to educate them about our laws and increase the rate of licensing of these companies.
- ✓ Building a productive and cohesive team to guarantee daily success which has culminated in the licensing of 69 new companies this year, up 23% from last year, and those new companies deployed 216 new registered trucks in Westchester.

### REVENUES:

#### Departmental Revenues

- ✓ The Solid Waste Commission is tax levy neutral, operating exclusively on application, background investigation, licensing, vehicle registration and transfer station fees paid by haulers operating in Westchester County. Revenue is also collected from fines imposed for violations of and non-compliance with Chapter 826-a of the Laws of Westchester County.

### SERVICE INDICATORS:

|                             | 2023<br>Actual | 2024<br>Estimated | 2025<br>Planned |
|-----------------------------|----------------|-------------------|-----------------|
| Class A Licenses            | 188            | 192               | 195             |
| Class B Licenses            | 9              | 13                | 14              |
| Class C-1 Licenses          | 162            | 190               | 210             |
| Class C-2 Licenses          | 161            | 184               | 200             |
| Class D Licenses            | 9              | 13                | 15              |
| Class E Licenses            | 18             | 17                | 17              |
| Class F Licenses            | 4              | 11                | 13              |
| Broker Licenses             | 15             | 16                | 16              |
| <b>Total</b>                | <b>566</b>     | <b>636</b>        | <b>680</b>      |
| Class A Truck Decals        | 1,198          | 1,138             | 1,150           |
| Class B Truck Decals        | 60             | 77                | 80              |
| Class C-1 Truck Decals      | 666            | 723               | 735             |
| Class C-2 Truck Decals      | 614            | 606               | 625             |
| Class D Truck Decals        | 72             | 99                | 105             |
| Class E Truck Decals        | 18             | 17                | 17              |
| Class F Truck Decals        | 10             | 60                | 65              |
| Transfer Stations           | 18             | 26                | 27              |
| <b>Total</b>                | <b>2,656</b>   | <b>2,746</b>      | <b>2,804</b>    |
| Violations of Chapter 826-a | 173            | 170               | 170             |